

		request for judicial notice state the server “will cause a copy of the above document to be served upon Rhonda Walker.” (ROA No. 38 and 42.) This does not state the documents were electronically served. (Code Civ. Proc., § 1013b, subd. (b)(4).) In addition, Defendants’ opposition declaration by Joslin did not include a service date for the declaration. (Code Civ. Proc., § 1013b, subd. (b)(2).) Defendants’ opposition did not object to service of Plaintiff’s papers. Problematically as it relates to the Court’s determination regarding her likelihood of prevailing on the merits, Plaintiff did not file any reply. A host of damaging evidence remains unrefuted. Accordingly, as a threshold issue, the parties shall be prepared to discuss a continuance and order to file proper proof of service.
2.	2017-00927161 Amezcuca-Moll v. Modarres	Thomas D. Sands of The Sands Law Group, APLC’s motion for an order relieving it as counsel of record for Defendant Farrah Modarres is continued to May 7, 2025, at 10AM, in Department N18. Counsel has failed to file proof of service of the moving papers on the other parties, pursuant to Cal. Rules Ct., Rule 3.1362(d) and Cal. Code Civ. Proc., § 1005(b). Accordingly, Defense counsel is ordered to serve notice of its motion, and this continued hearing on both his client and all other parties and file a proof of service of same pursuant to the Code of Civil Procedure, no later than 5 court days before the new hearing date.
3.	2021-1205947 National Payment Systems v. Cardflex	<i>On its own motion, the Court continues the matter to April 23, 2025, at 10AM, in Department N18, to be heard jointly with the motion currently set that day.</i>
5.	2022-1293776 Ocampo Paz v. Rexford	Defendant Rexford Industrial Realty, L.P’s (“Rexford”) motion for summary judgment as to the Complaint of Plaintiffs Jenny Grissel Ocampo Paz and Estate of Juan Carlos Perez is denied. Plaintiffs’ evidentiary objections are sustained as to Nos. 2 and 3 and overruled as to the remaining. Defendant’s request that the Court take judicial notice of Plaintiffs’ Complaint is denied as it is unnecessary to ask the court to take judicial notice of materials previously filed in

	this case. “[A]ll that is necessary is to call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9.53.1a.) “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see <i>Scheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.)
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	Rexford owns the subject property where the accident occurred. (UMF 1.) Rexford executed a construction contract with Defendant BHL, Inc. dba West Coast Roofing Co. for replacement of the roof. (UMF 2-4.) BHL ordered roofing supplies from Defendant Beacon Roofing Supply for delivery to the property; Beacon employed Decedent Juan Carlos Perez. (UMF 5-6.) While in the process of delivering roofing supplies on behalf of Beacon, Decedent fell through a skylight that was located on the roof of the Subject Property. (UMF 7.) Defendant’s motion is based on <i>Privette v. Superior Court</i> (1993) 5 Cal.4th 689, in which the California Supreme Court addressed the doctrine of peculiar risk. The peculiar risk doctrine provides a general rule that the hirer of an independent contractor may be vicariously liable for injuries caused to third parties by that contractor’s negligence where the contracted work is inherently dangerous. (<i>Id.</i> at p. 691.) The <i>Privette</i> Court carved out an exception to the doctrine, holding that a property owner who hires an independent contractor to perform construction work cannot be held liable for injuries to that contractor’s employee where the property owner did not cause the employee’s injuries. (<i>Id.</i> at p. 702.) Once a defendant establishes that it hired an independent contractor to perform certain work, and the independent contractor’s worker was injured in the course of the work, the burden shifts to plaintiff to raise a triable issue of fact as to whether any exceptions to the <i>Privette</i> doctrine apply. (<i>Miller v. Roseville Lodge No. 1293</i> (2022) 83 Cal.App.5th 825, 834 [citing <i>Alvarez v. Seaside Transportation Services LLC</i> (2017) 13 Cal.App.5th 635, 644].) If Plaintiff cannot do this, Defendant is entitled to summary judgment. (<i>Ibid.</i>) Defendant failed to plead the <i>Privette</i> Doctrine as an affirmative Defense in its Answer. (ROA 17.) As a result, for purposes of summary judgment, this argument is waived. (See (<i>California Academy of Sciences v. County of Fresno</i> (1987) 192 Cal.App.3d 1436 (“[a] party who fails to plead affirmative defenses waives them.”), 1442 Cal. Prac. Guide Civ. Pro. Before Trial Ch. 10(B) at ¶ 10.51.19; citing <i>Kendall v. Walker</i> (2009) 181 Cal.App.4th 584, 598; <i>FPI Develop., Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 383).) Defendant’s reliance on <i>Atkins v. St. Cecilia Catholic School</i> (2023) 90 Cal.App.5th 1328, in its reply brief is of little persuasion. This case is distinguishable as the defendant
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	did not realize that this defense was available to it until the Supreme Court issued a ruling during the pendency of the litigation. Furthermore, before the defendant filed its MSJ, it gave the plaintiff notice of its intent to assert this defense in filing a motion to set aside a scheduling order. (<i>Id.</i> at 1341.) Even if Defendant had not waived this defense by failing to assert it in its Answer, the Court finds that a triable issue of material fact exists as to whether the concealed condition exception to the <i>Privette</i> doctrine applies. Under this exception, “the hirer as landowner may be independently liable to the contractor’s employee, even if it does not retain control over the work, if: (1) it knows or reasonably should know of a concealed, preexisting hazardous condition on its premises; (2) the contractor does not know and could not reasonably ascertain the condition; and (3) the landowner fails to warn the contractor.” (<i>Kinsman v. Unocal Corp.</i> (2005) 37 Cal.4th 659, 675.) A condition is not concealed if it is “known,” “reasonably ascertainable,” or “apparent to a reasonable person.” (<i>Id.</i>) Plaintiffs submit evidence (primarily the deposition of then roofing contractor, West Coast’s person most knowledgeable) that West Coast’s superintendent inspected the subject roof a few days before Beacon’s employees delivered the roofing material that West Coast bought from Beacon. One of the purposes was to check for safety hazards such as unprotected skylights and to mitigate or eliminate those hazards. There is a regulation requiring skylights to be capable of absorbing weight up to 400 pounds and be protected by netting or screens also capable of absorbing 400 pounds. (PAMF 33-35.) The evidence reflects that there was no netting or any other type of protective barrier on the subject skylight. Nor were there guardrails. (PAMF 37-42.) Defendant focuses on the issue of control; it contends that it had no role in directing the activities of the contractors involved and retained no control over the worksite. But, pursuant to <i>Kinsman</i>, it is not necessary that control be shown to preclude the application of <i>Privette</i>, rendering Defendant liable. (See <i>Kinsman, supra</i>, 37 Cal.4th at 675.) The Court finds that there are triable issues of material fact as to whether Rexford, as owner of the property, knew or
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		should have known of the dangerous condition of the unprotected skylights on the roof. Thus, because there are therefore triable issues of fact as to whether the <i>Privette</i> Doctrine shields Defendant from liability, there are more general triable issues of fact as to whether Defendant, as the landowner, is responsible for the negligence of its subcontractor, West Coast in failing to mitigate the hazards of the unprotected skylights. (See <i>Srithong v. Total Investment Co.</i> (1994) 23 Cal.App.4th 721, 725 (“[t]he duty which a possessor of land owes to others to put and maintain it in reasonably safe condition is nondelegable. If an independent contractor, no matter how carefully selected, is employed to perform it, the possessor is answerable for harm caused by the negligent failure of his contractor to put or maintain the buildings and structures in reasonably safe condition).) As a result, the MSJ is denied. Plaintiff shall give notice.
6.	2023-1333479 Arevalo v. Nissan	Defendant Nissan North America, Inc.’s motion for relief from waiver of objections to requests for production, set one (“RFPs”), and requests for admission, set one, served by plaintiffs Neftali Arevalo and Maria Yamileth Bonilla is granted. Plaintiffs’ motions to compel responses by Defendant to RFPs is therefore moot. The court may relieve a party from a waiver of objections to interrogatories if two conditions are satisfied: (1) the party has subsequently served a response that is in substantial compliance; and (2) the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demand); 2033.280(a) (requests for admission)). With respect to the first condition, Defendant has now served code compliant responses. [Do Decl. (ROA #107), Ex. C; Do Reply Decl. (ROA #222), Ex. A.] “[A]ny form of response [] is permissible,” including an answer or objection. Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1035. That is, “there must be a full and fair response to each interrogatory; so that all questions are answered other than those to which